

Contract & Building/Pest Inspection Red Flags — Western Australia

What to check before you sign — because in WA, there's no cooling off to fall back on.

Correct as at July 2026. General information only, not legal advice — always have a settlement agent or solicitor review your specific contract before signing.

Section 1 — The Single Most Important Thing to Understand About WA Contracts

- ☐ [] **There is no cooling-off period in Western Australia.** Once both parties sign the contract of sale, you are bound — there is no statutory right to withdraw, whether the sale is private treaty or auction. This makes pre-signature diligence far more critical in WA than in states with a cooling-off buffer.
- ☐ [] **Every condition you need must be written into the contract before you sign** — finance approval, building/pest inspection, sale of your existing property, or anything else. A verbal understanding or an intention to "sort it out later" has no legal protection once you've signed.

Section 2 — Building & Pest Inspection: Even More Critical Here

- ☐ [] **Arrange your building and pest inspection before you sign**, or ensure the contract includes a clearly worded, time-limited inspection condition that lets you exit if the results are unsatisfactory.
- ☐ [] **Use a licensed, independent inspector** — not one exclusively recommended by the selling agent without your own due diligence.
- ☐ [] **Get both a building and pest inspection**, ideally combined.
- ☐ [] **Ask specifically about:** structural issues, rising damp, roof condition, asbestos (common in pre-1990s homes), and general electrical/plumbing age.
- ☐ [] **Get the report in writing before you sign**, not after — given there's no cooling-off period, a verbal "looks fine" from an inspector isn't something you can act on if the written report later reveals issues.

Section 3 — Contract Fundamentals

- ☐ [] **Check the finance clause wording carefully** — if you're not fully pre-approved, ensure a genuine, clearly time-limited finance condition is included, since it's your only formal exit if finance falls through.
- ☐ [] **Confirm the settlement date works with your finance, insurance, and moving logistics.**
- ☐ [] **Confirm deposit terms** — amount, due date, and where it's held (typically in a settlement agent's or agent's trust account).
- ☐ [] **Confirm all expected inclusions are explicitly listed** in the contract, not just verbally promised.
- ☐ [] **If buying a strata property, review the strata records** — recent meeting minutes, financials, sinking fund balance, and any known disputes or special levies.

Section 4 — Before You Sign: Final Checks

- ☐ [] **Have a settlement agent or solicitor review the entire contract before you sign it** — not after, and not as a formality. This is your primary protection given the absence of a cooling-off period.
- ☐ [] **Don't let time pressure push you into signing before your review and inspection are genuinely complete** — a rushed signature in WA is far riskier than in states where a cooling-off window exists as a backstop.
- ☐ [] **If you're at all uncertain, ask for more time before signing** — it's a reasonable request, and far cheaper than an unwanted, binding commitment.

Quick Reference — Key WA Contract Realities

PROTECTION	WHAT IT MEANS
Cooling-off period	None — you're bound the moment both parties sign
Finance/inspection conditions	Must be explicitly written into the contract before signing
Building/pest inspection	Not automatically provided — arrange your own before signing
Contract review	Must happen before signature, not after

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